NYAYA LEGAL - MASTER SERVICE AGREEMENT EXCERPT

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Fictional Notice: This excerpt was created solely for Nyaya demonstration and testing. It is not legal advice and is not based on any real company contract.

8. Limitation of Liability

8.1 Aggregate Cap. Except for Excluded Claims under Clause 8.3, each party's total aggregate liability arising out of or relating to this Agreement, whether in contract, tort (including negligence), breach of statutory duty, misrepresentation, restitution or otherwise, shall not exceed an amount equal to the Fees paid or payable by the Customer under this Agreement during the twelve (12) months immediately preceding the event giving rise to the claim.

8.2 Excluded Losses. Neither party shall be liable for indirect, incidental, special or consequential loss, or for loss of profit, revenue, anticipated savings, business opportunity or goodwill, except to the extent such amounts form part of a third-party claim covered by an indemnity in Clause 9.

8.3 Excluded Claims. The cap in Clause 8.1 does not apply to: (a) fraud or fraudulent misrepresentation; (b) death or personal injury caused by negligence; (c) wilful misconduct; (d) breach of confidentiality; (e) infringement or misuse of intellectual property rights; or (f) amounts payable under the indemnities in Clause 9.

9. Indemnification

9.1 Supplier IP Indemnity. The Supplier shall defend and indemnify the Customer against third-party claims alleging that the Services, when used in accordance with this Agreement, infringe a patent, copyright or registered trademark. The indemnity applies to final damages, reasonable settlements approved by the Supplier, and reasonable external legal costs.

9.2 Customer Content Indemnity. The Customer shall defend and indemnify the Supplier against third-party claims arising from Customer-provided data, instructions or materials that infringe intellectual property rights, violate applicable law, or were supplied without required consent.

9.3 Security and Confidentiality Trigger. A party responsible for an unauthorised disclosure of the other party's Confidential Information, or a security incident caused by its material breach of agreed security obligations, shall indemnify the affected party for regulator-imposed costs, required notification expenses and third-party claims, to the extent legally recoverable.

9.4 Conditions. An indemnity is conditional on prompt written notice, reasonable control of the defence by the indemnifying party, no admission or settlement without prior written consent, and reasonable cooperation by the indemnified party.

15. Governing Law and Jurisdiction

15.1 Governing Law. This Agreement and any non-contractual obligations arising from it are governed by the laws of the Republic of Singapore.

15.2 Jurisdiction. The courts of Singapore shall have exclusive jurisdiction to resolve any dispute, claim or controversy arising out of or relating to this Agreement, including disputes concerning its existence, validity, interpretation, performance or termination.

15.3 Escalation Before Proceedings. Before commencing court proceedings, each party shall refer the dispute to its designated commercial representative and legal representative for a good-faith resolution meeting, except where urgent injunctive relief is required.

End of fictional excerpt